

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable Elia Ortiz
Judge of the Superior Court
County of Napa
1111 Third Street
Napa, CA 94559

Re: Leon, Marcos Rios
CDC No.: BC7816
Case No.: CR180773
Date of Sentence: April 12, 2007

Dear Honorable Elia Ortiz:

The purpose of this letter is to provide the court with authority to resentence Marcos Rios Leon pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Lean was sentenced in 2007, and was convicted of section 245, subdivision (A)(2), Assault w/firearm on person. The trial court sentenced inmate Lean on April 12, 2007. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Lean's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Lean's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Complaint

cc: Honorable Elia Ortiz, Napa County Presiding Judge
Napa District Attorney
Public Defender

BL 7816

BC 7816

CERTIFIED COPY

**FELONY ABSTRACT OF JUDGMENT—DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: NAPA		FILED APR 12 2017 CLERK OF THE NAPA SUPERIOR COURT BY <u>[Signature]</u>	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: LEON, MARCOS RIOS AKA: Tree, Stretch CII NO.: A33451902 BOOKING NO.: 201400662-08 ☐ NOT PRESENT		CASE NUMBER CR180773	
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT			
DATE OF HEARING 04/12/2017	DEPT. NO. E	JUDGE Elia Ortiz	
CLERK D. Harry	REPORTER M. Corrigan	PROBATION NO. OR PROBATION OFFICER 201400662 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE Jodi Dell		COUNSEL FOR DEFENDANT Allison Wilensky ☒ APPOINTED	

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	JURY	COURT	PLEA	TERM (L.M.U.)	SERIOUS FELONY	VIOLENT FELONY	TIME IMPOSED YRS	MOS.
4	PC	245(A)(2)	Assault w/firearm on person	2016	01/25/2017				X	U	x	x	4	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL
4	PC12022.7	3 yrs	PC186.22(b)(1)(C)	10 yrs			13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL

4. Defendant sentenced: ☐ to county jail per PC 1170(h)(1) or (2) ☐ per PC 667(b)-(i) or PC 1170.12 (strike prior) ☐ to prison per PC 1170(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):
Restitution Fine(s): \$300 per PC1202.4 (b) forthwith per PC 2085.5 if prison commitment \$300 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC1202.4 (f): ☐ \$ ☒ Amount to be determined to ☒ * victim(s) ☒ Restitution Fund
* ☐ Victim name(s), if known, and amount breakdown in item 8, below. * ☒ Victim name(s) in probation officer's report.
Fine(s): \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.
☒ Court Operations Assess.: \$ 40 per PC 1485.8. ☒ Conviction Assess.: 30 per GC 70373. ☐ Other: \$ per (specify)

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☒ other (specify): Test per PC296

7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post sentence report to CDCR per PC 1203c. Def's Race / National Origin **H**

8. Other orders (specify): Victim Ricardo Morales: restitution \$58121.07 + amt to be determined; Victim Maria Guerrero: restitution TBD

9. TOTAL TIME IMPOSED: **17** **0**

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: Served forthwith:

11. ☐ This sentence is to run concurrent with (specify): 12. Registration Required: ☒ per (specify code section): PC186.30

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS:	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	TIME SERVED IN STATE INSTITUTION
04/12/2017	271	236	35 ☐ 2933 ☒ 2933.1 ☐ 4019	DMH CDCR CRC

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays. To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation. ☐ county jail ☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE [Signature] DATE 12 April 2017

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.